

Attachment D

Limited Source Justification

“Source Selection Information – see FAR 2.101 and 3.104”

1. Identification of the agency and contracting activity.

- a. **Federal agency and contracting activity.** Department of Health and Human Services (HHS)/National Institutes of Health (NIH)/ *Eunice Kennedy Shriver* National Institute of Child Health and Human Development (NICHD).
- b. **Sponsoring organization.** Office of Information Technology (OIT), NICHD
- c. **Project Officer information.**
 - **Project Officer name:** Li Huang
 - **Mailing address:** 6710B Rockledge Drive, Bethesda, MD 20817
 - **E-mail address:** huangli@mail.nih.gov
 - **Telephone number:** 301.435.3878

2. Nature and/or description of the action being approved.

a. Acquisition purpose and objectives.

The purpose of this request is to extend General Services Administration (GSA) order GS35F0482U_75N94022F00058 by three (3) months to prevent a lapse in services, pursuant to FAR 52.217-8. This requirement provides planning and technical support for Information Technology (IT) application and web site development and maintenance, web application infrastructure guidance, and other on-site technical services. The focus of these IT support activities is the creation, development, maintenance, operation, and support of a web application infrastructure that provides an efficient, effective, reliable, and secure computing environment in support of the NICHD mission and supports NICHD staff in the efficient and effective utilization of these capabilities.

The NICHD application environment includes more than 50 applications to support the Extramural community, administrative community, and for public outreach. Many applications are integrated with the NIH enterprise applications. In compliance with the Cloud Smart initiative, NICHD public websites are hosted in Azure. NICHD is analyzing Cloud services and identifying potential applications to be migrated to the Cloud.

b. Project background.

- Order Number: #GS-35F-0482U 75N94022F00058
- Incumbent Contractor Name: Woodbourne Solutions, Inc.
- Contract Value: \$42,400,624.18
- Total Obligated Dollars: \$38,432,906
- Period of Performance: The current order period of performance is May 17, 2022, through April 16, 2025
- All subsequent awards were competed, including the current order

c. Description of the supplies or services required to meet the agency's needs (including the estimated value).

a. Project title.

NICHD Application and Web Development Support Services

b. Project description.

The NICHD Office of Information Technology requires continued planning and technical support for IT application and web site development and maintenance, web application infrastructure guidance, and other on-site technical services, NICHD and/or NIH Wide. The focus of these IT support activities is the creation, development, maintenance, operation, and support of a web application infrastructure that provides an efficient, effective, reliable, and secure computing environment in support of NICHD's mission and supports NICHD staff in the efficient and effective utilization of these capabilities.

• **Requirement type.**

- ☐ Support services (non-research & development)
- ☐ Supplies/equipment
- ☒ Information technology (IT)
- ☐ Other (specify): _____

• **Type of action.**

- ☐ New requirement
- ☒ Follow-on: Extension of Services

• **Proposed contract/order type.**

- ☐ Firm-fixed-price
- ☒ Time and materials
- ☐ Indefinite delivery (specify whether indefinite quantity, definite quantity, or requirements): _____
- ☐ Other (specify): _____

- **Acquisition identification number.**
Task Order #GS-35F-0482U _75N94022F00058

- c. **Total estimated dollar value and performance/delivery period.**
The period of performance will be extended to three (3) months with a period of performance of April 17, 2025, through July 16, 2025, with an estimated cost of \$3,318,887.

4. Identification of the justification rationale [see 8.405-6(a) and (b)] and, if applicable, a demonstration of the proposed contractor's unique qualifications to provide the required supply or service.

a. Acquisition authority.

- ☒ This acquisition is conducted under the authority of the Multiple Award Schedule Program. Consideration of schedule contractors will be restricted to fewer than the number required by Federal Acquisition Regulation (FAR) 8.405-6(a)(1)(C) In the interest of economy and efficiency, the new work is a logical follow-on to an original Federal Supply Schedule order provided that the original order was placed in accordance with the applicable Federal Supply Schedule ordering procedures.
- ☐ This acquisition is conducted under the authority of the Multiple Award Schedule Program. Consideration of schedule contractors will be restricted only to the item peculiar to one manufacturer as provided in FAR 8.405-6(a)(2)

b. Demonstration of the proposed contractor(s) unique qualifications to provide the required supply or service.

- **Name and address of the proposed contractor(s).**

WOODBOURNE SOLUTIONS, INC:1151696
12800 MIDDLEBROOK ROAD
SUITE 300
GERMANTOWN MD

- **Nature of the acquisition and proposed contractor(s) unique qualifications.**

Order GS-35F-0482U _75N94022F00058 was initially competed amongst small businesses under General Services Administration (GSA) Multiple Award Schedule (MAS) Special Item Number (SIN) 54151S, IT Professional Services. The follow-on requirement was planned to be solicited in late January 2025/February 2025. However, due to the delays resulting from the implementation of Department of Health and Human Services (HHS) Acquisition Alert 2025-02, Acquisition Guidance on Acting Secretary Memo entitled, "Immediate Pause on Issuing Documents and Public Communications – ACTION" (January 21, 2025) and other required adjustments to the acquisition plan, the solicitation for the follow-on award was delayed.

If the current task order is not granted a three-month extension, NICHD risks a lapse in services. At this time, it would be very costly and difficult to award a new action to a new contractor in one week. A new contractor does not have the knowledge or staff levels to support this contract as early as April 16, 2025. The follow-on requirement is in the process of being prepared and approved to be solicited. The current contractor, Woodbourne Solutions, possesses the necessary institutional knowledge necessary for this requirement as well as the personnel. Woodbourne Solutions is the only viable source who can do the work and does not require a transition period. Moreover, a three-month extension will allow adequate time to complete the follow-on action and to allow for a transition period if necessary.

Given the critical nature of our ongoing web development needs, it is essential to maintain uninterrupted support to ensure the continued functionality, security, and updates of our web platforms. Transitioning to a new contractor at this time would pose significant risks, including service disruption, potential security vulnerabilities, and delays in meeting key deadlines.

If this task order is not extended, the continuity of services for all web-based applications will be lost and there will be a breakdown in web application infrastructure. Losing this order will become extremely costly and will also result in the loss of critical data that has been monitored for years. It will be difficult to establish and maintain NICHD's IT roadmap with consistency and robustness

This current contract provides IT professional services for application development, maintenance, and web application infrastructure guidance, and other on-site technical services. The focus of these IT support activities is the creation, development, maintenance, operation, and support of a web application infrastructure that provides an efficient, effective, reliable, and secure computing environment in support of the NICHD mission and supports NICHD staff in the efficient and effective utilization of these capabilities.

The current vendor has demonstrated a high level of expertise, familiarity with NICHD's systems, and a proven track record of successful project delivery, making them the best-qualified option to maintain services during this interim period. This extension will allow sufficient time for the proper planning, procurement process, and implementation of a new contract without compromising the quality or integrity of our web services.

The current contractor supports the NICHD application environment that includes more than 50 applications to support the Extramural community, administrative community, and public outreach. In addition to supporting the NICHD, the contractor also supports three major projects for other Institutes/ Centers (ICs) that

have become critical for their daily operations. The loss of this contract without proper transition will result in the loss of data and key services. The current projects that are being supported for other ICs are as follows:

- NIDILRR – Interagency Rehabilitation and Disability (IRAD) Research
- NIA – Conference Support
- NH/OD – Property Discrepancy Tool

5. Determination by the ordering activity Contracting Officer that the order represents the best value consistent with FAR 8.404(d).

By placing an order against a schedule contract using the procedures in FAR 8.405, the ordering activity Contracting Officer has concluded that the order represents the best value (see FAR 2.101) and results in the lowest overall cost alternative (considering price, special features, administrative costs, etc.) to meet the Government's needs. In accordance with 8.405-2(d), Evaluation, the price evaluation will be conducted by the Contracting Officer and Project Officer by considering the level of effort and the mix of labor proposed to perform the work is appropriate, and by determining that the total price is reasonable.

The resultant modification will be a time and materials price effort with a ceiling.

The current contractor pricing was determined to be fair and reasonable as determined by FAR 8.404(d) and the contractor proposed additional discounts in addition to their GSA rates. For the requested extension, the contractor will be asked to propose additional discounts for the three-month period. The proposed prices will be evaluated against the government's historical data as well, the current NICHD task order, and their GSA rates.

6. Description of the market research conducted among schedule holders and the results, or a statement of the reasons market research was not conducted.

Market research was conducted for GS-35F-0482U _75N94022F00058 and again for the follow-on for this requirement and it was determined that a small business could perform at the required levels to execute this requirement. For the reasons stated in Section 4, this extension request for an IT Professional service is necessary due to the knowledge necessary to support the organization, the end-users, and has a paramount importance in assuring sustainability to the program.

It is intended that this work will be continued and is currently in the acquisition planning phase with the intention of using FAR 8.405 or FAR 16.5 ordering procedures. It is also intended that NICHD will continue to engage in market research for the follow-on and lifecycle of the award to ensure the Government is taking advantage of the best possible options.

7. Any other facts supporting the justification.

The proposed acquisition is a modification to an existing task order for work within the scope of the task order.

While the re-competition is currently in the acquisition planning phase, adjustments to the scope of work are being reviewed while the Department of Health and Human Services (HHS) and the National Institutes of Health (NIH) undergo major restructurings of IT infrastructure and operations. It is anticipated this extension will be the minimal amount of time required in order to provide adequate planning for the new procurement.

Continuing this planning process is crucial to mitigating risks and ensuring that the resulting contract is robust, efficient, and capable of meeting our mission-critical web development requirements.

8. Statement of the actions, if any, the agency may take to remove or overcome any barriers that led to the restricted consideration before any subsequent acquisition for the supplies or services is made.

a. Removal of barriers to competition.

The incumbent is the only source capable of providing services needed for this extension. However, we do not expect to run into barriers to competition for the follow-on requirement.

b. Listing of sources, if any, that expressed an interest in writing, in the acquisition.

No additional sources identified.

9. Program office certification.

This is to certify that the portions of this justification that have been developed by the undersigned program office personnel, including supporting information and/or data verifying the Government's minimum needs or requirements, or other rationale for limited sources, are accurate and complete.

Official	Name & Title	Signature	Date
Project Officer	Huang, Li (Application and Data Manager/IT Specialist & COR)	Li Huang -S Digitally signed by Li Huang -S Date: 2025.04.08 15:03:46 -04'00'	
Project Officer's	Viilu, Erik (CIO)	Viilu, Erik (NIH/ NICHHD) [E] Digitally signed by Viilu, Erik (NIH/ NICHHD) [E] Date: 2025.04.08 16:48:09 -04'00'	

Immediate Supervisor			
Head of the Sponsoring Program Office	"See Above"		

10. Contracting Officer certification

This is to certify that the justification for the proposed acquisition has been reviewed and that to the best of my knowledge and belief the information and/or data provided to support the rationale and recommendation for approval is accurate and complete.

Official	Name & Title	Signature	Date
Contracting Officer	Warren, Courtney, Contracting Officer	Courtney Warren -S Digitally signed by Courtney Warren Date: 2025.04.09 08:04:00 -04'00'	

11. Chief of the Contracting Office and Head of the Contracting Activity signature(s).

Official	Name & Title	Signature	Date
Chief of the Contracting Office	Jeremy White, OA Director	JEREMY D. WHITE -S Digitally signed by JEREMY D. WHITE -S Date: 2025.04.09 08:08:07 -04'00'	
Head of the Contracting Activity	"For" Olga Acosta, Head of Contracting Activity, Director of Office of Acquisition and Logistics Management, OM, NIH		

12. Competition Advocate signature.

Official	Name & Title	Signature	Date
Competition Advocate	Dr. Kathryn Partin Director of Research Integrity, NIH		